EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

DECISION

Application no. 10176/12
Selahattin ELÇİ
against Turkey

The European Court of Human Rights (Second Section), sitting on 14 February 2019 as a Committee composed of:
Stéphanie Mourou-Vikström, *President,*
Arnfinn Bårdsen,
Darian Pavli, *judges,*
and Liv Tigerstedt, *Acting Deputy Section Registrar,*
Having regard to the above application lodged on 21 December 2011,
Having deliberated, decides as follows:

FACTS AND PROCEDURE

The applicant, Mr Selahattin Elçi, was born in 1974.

He was represented before the Court by Ms F. Miran, a lawyer practising in Diyarbakır.

The applicant's complaints under Articles 6 and 14 of the Convention concerning the alleged disproportionate nature of the sentences imposed upon him and the complaint under Article 9 of the Convention, to be examined under Articles 10 and 11 of the Convention, were communicated to the Turkish Government ("the Government") on 25 September 2017.

The Government's observations of 14 March 2018 were forwarded to the applicant on 29 March 2018.

By letter dated 10 July 2018, sent by registered post, the applicant was notified that the period allowed for submission of his observations on the admissibility and merits of the application had expired on 11 May 2018 and that no extension of time had been requested. The applicant's attention was drawn to Article 37 § 1 (a) of the Convention, which provides that the Court may strike an application out of its list of cases where the circumstances

lead to the conclusion that the applicant does not intend to pursue the application. The applicant's representative received this letter on 2 August 2018. However, no response has been received.

THE LAW

In the light of the foregoing, the Court concludes that the applicant may be regarded as no longer wishing to pursue the application (Article 37 § 1 (a) of the Convention). Furthermore, in accordance with Article 37 § 1 *in fine*, the Court finds no special circumstances regarding respect for human rights as defined in the Convention and the Protocols thereto which require the continued examination of the application.

Accordingly, the case should be struck out of the list.

For these reasons, the Court, unanimously,

Decides to strike the application out of its list of cases.

Done in English and notified in writing on 7 March 2019.

Liv Tigerstedt Acting Deputy Registrar	Stéphanie Mourou-Vikström President